

STATE OF NEW YORK

10160--A

Cal. No. 336

IN ASSEMBLY

February 12, 2026

Introduced by M. of A. BURDICK, SIMON, OTIS -- read once and referred to the Committee on Corporations, Authorities and Commissions -- reported from committee, advanced to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the public service law, in relation to requiring public assistance payments for residential gas and electric service are accepted and credited by utilities

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short Title. This act shall be known and may be cited as
2 "the HEFPA Protection Act".

3 § 2. Section 32 of the public service law is amended by adding a new
4 subdivision 7 to read as follows:

5 7. A gas or electric corporation shall accept and credit any public
6 assistance payment tendered on behalf of a residential customer by a
7 social services district or the office of temporary and disability
8 assistance, including but not limited to payments made pursuant to the
9 home energy assistance program as established in section ninety-seven of
10 the social services law, and emergency funding from programs as estab-
11 lished in section one hundred thirty-one-s of the social services law.
12 Upon receipt of such payment or notice that such payment has been
13 authorized and will be issued, a gas or electric corporation shall treat
14 the payment as made for all purposes under this section, including
15 restoration of residential utility service, and satisfaction of other
16 forms of collections activity, regardless of the status of the custom-
17 er's account. Where such payment does not fully satisfy arrears, a gas
18 or electric corporation shall encourage the customer to apply for any
19 additional public assistance programs they may be eligible for and, upon
20 exhaustion of such program applications and if such customer is other-
21 wise eligible, offer the residential customer a payment agreement for
22 the remaining balance in accordance with section thirty-seven of this
23 article.

24 § 3. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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